

ARCH INSURANCE COMPANY

Harborside 3
210 Hudson Street, Suite 300
Jersey City, NJ 07311-1107

DECLARATIONS**APPARATUS AND EQUIPMENT COVERAGE FORM****POLICY NO.** MEIM10653700**RENEWAL OF POLICY NO.****NAMED INSURED:** Stonebridge Contracting Inc**MAILING ADDRESS:** PO Box 300
Inlet, NY 13360**POLICY PERIOD:** From 04/01/2025 To 04/01/2026
at 12:01 A.M. Standard Time at your Mailing Address shown above**FORM OF BUSINESS:** ☐ Individual ☐ Joint Venture ☐ Partnership ☐ Corporation ☐ Limited Liability Company
☒ Other (specify):
Fire and Rescue**LIMITS OF INSURANCE:** Emergency Apparatus – see the Schedule of Apparatus
Portable Equipment – Guaranteed Replacement Cost – see
section **C. What We Will Pay**
Other Property – see the Schedule of Other Property

DEDUCTIBLE:	\$ 2,500	Emergency Apparatus
	\$ 2,500	Portable Equipment
	\$ N/A	Other Property

PREMIUM FOR THIS COVERAGE:	\$ 3,538	Total Premium
	\$	Advance Premium (if any)

Commercial Inland Marine TRIA \$88.00

Forms and Endorsements made a part of this policy at time of issue:
See attached 00 ML0207 00 forms list

In return for the payment of the premium, and subject to all of the terms and conditions of this policy, we agree with you to provide the insurance as stated in this policy. These Declarations, together with the Common Policy Conditions and Coverage Form(s) and any endorsements, complete the above numbered policy.

Countersigned at:

McNeil & Company, Inc.

rb

by:


Authorized Signature and Title

03/27/2025

Date

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ENDORSEMENT SCHEDULE

FORMS AND ENDORSEMENTS APPLYING TO THIS COVERAGE PART AND MADE PART OF THIS POLICY AT THE TIME OF ISSUE:

<u>NUMBER</u>	<u>EDITION</u>	<u>NAME</u>
DEC MA 05	01/11	Apparatus and Portable Equipment Policy Declarations
00 ML0207	11/03	Endorsement Schedule
00 ML0207	11/03	Long Named Insured Endorsement
05 ML0002	12/14	Signature Page
IL P 001	01/04	OFAC - U.S. Treasury Department
DEC MA 05	01/11	Schedule of Apparatus
IL0268	01/14	New York Changes - Cancellation and Nonrenewal
IL0017	11/98	Common Policy Conditions
IL0183	08/08	New York Changes
IL0952	01/15	Cap on Losses from Certified Acts of Terrorism
CM0001	09/04	Commercial Inland Marine Conditions
CM0104	09/15	New York Changes
MA0500	01/15	Apparatus And Portable Equipment Coverage Form
MA5000 NY	01/15	Members Vehicles - New York
MA5004	01/11	Loss Payable
MA5002	01/11	Automatic Increase for Apparatus
MA5008	01/11	Waived Deductible
MA5013	01/15	Guaranteed Replacement Cost - Apparatus

All other terms and conditions of this Policy remain unchanged.

Issued By: Arch Insurance Company

Endorsement Number:

Policy Number: MEIM10653700

Named Insured: Stonebridge Contracting Inc

Endorsement Effective Date: 04/01/2025



Authorized Representative

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies the insurance provided under the following:

LONG NAMED INSURED ENDORSEMENT

The Named Insured is amended to read as follows:

Stonebridge Contracting Inc

Inlet EMS Squad

Inlet Fire Auxiliary

Stonebridge Contracting Inc

Junior Fire Fighters

Inlet Volunteer Hose Company

All other terms and conditions of this Policy remain unchanged.

Issued By: Arch Insurance Company

Policy Number: MEIM10653700

Named Insured: Stonebridge Contracting Inc

Endorsement Effective Date: 04/01/2025



Authorized Representative



Signature Page

IN WITNESS WHEREOF, Arch Insurance Company has caused this policy to be executed and attested.

A handwritten signature in cursive script that reads "Brian D. First".

Brian D. First
President

A handwritten signature in cursive script that reads "Regan A. Shulman".

Regan Shulman
Secretary

U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – <http://www.treas.gov/ofac>.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.

ARCH INSURANCE COMPANY

SCHEDULE OF APPARATUS

Policy No.: MEIM10653700

Named Insured Stonebridge Contracting Inc

Effective Date of this Schedule: 04/01/2025

[illegible]

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES – CANCELLATION AND NONRENEWAL

This endorsement modifies insurance provided under the following:

CAPITAL ASSETS PROGRAM (OUTPUT POLICY) COVERAGE PART
COMMERCIAL GENERAL LIABILITY COVERAGE PART
COMMERCIAL INLAND MARINE COVERAGE PART
COMMERCIAL PROPERTY COVERAGE PART
CRIME AND FIDELITY COVERAGE PART
EQUIPMENT BREAKDOWN COVERAGE PART
FARM COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

A. Paragraphs 1., 2., 3. and 5. of the Cancellation Common Policy Condition are replaced by the following:

1. The first Named Insured shown in the Declarations may cancel this entire policy by mailing or delivering to us advance written notice of cancellation.

2. Cancellation Of Policies In Effect

a. 60 Days Or Less

We may cancel this policy by mailing or delivering to the first Named Insured written notice of cancellation at least:

- (1)** 30 days before the effective date of cancellation if we cancel for any reason not included in Paragraph **A.2.b.** below.
- (2)** 15 days before the effective date of cancellation if we cancel for any of the reasons included in Paragraph **A.2.b.** below.

b. For More Than 60 Days

If this policy has been in effect for more than 60 days, or if this policy is a renewal or continuation of a policy we issued, we may cancel only for any of the reasons listed below, provided we mail the first Named Insured written notice at least 15 days before the effective date of cancellation:

- (1)** Nonpayment of premium, provided however, that a notice of cancellation on this ground shall inform the first Named Insured of the amount due;

- (2)** Conviction of a crime arising out of acts increasing the hazard insured against;
- (3)** Discovery of fraud or material misrepresentation in the obtaining of the policy or in the presentation of a claim;
- (4)** After issuance of the policy or after the last renewal date, discovery of an act or omission, or a violation of any policy condition, that substantially and materially increases the hazard insured against, and which occurred subsequent to inception of the current policy period;
- (5)** Material physical change in the property insured, occurring after issuance or last annual renewal anniversary date of the policy, which results in the property becoming uninsurable in accordance with our objective, uniformly applied underwriting standards in effect at the time the policy was issued or last renewed; or material change in the nature or extent of the risk, occurring after issuance or last annual renewal anniversary date of the policy, which causes the risk of loss to be substantially and materially increased beyond that contemplated at the time the policy was issued or last renewed;
- (6)** Required pursuant to a determination by the Superintendent that continuation of our present premium volume would jeopardize our solvency or be hazardous to the interest of our policyholders, our creditors or the public;

(7) A determination by the Superintendent that the continuation of the policy would violate, or would place us in violation of, any provision of the Insurance Code; or

(8) Where we have reason to believe, in good faith and with sufficient cause, that there is a probable risk of danger that the insured will destroy, or permit to be destroyed, the insured property for the purpose of collecting the insurance proceeds. If we cancel for this reason, you may make a written request to the Department of Financial Services, within 10 days of receipt of this notice, to review our cancellation decision. Also, we will simultaneously send a copy of this cancellation notice to the Department of Financial Services.

3. We will mail or deliver our notice, including the reason for cancellation, to the first Named Insured at the address shown in the policy and to the authorized agent or broker.

5. If this policy is cancelled, we will send the first Named Insured any premium refund due. If we cancel, the refund will be pro rata. If the first Named Insured cancels, the refund may be less than pro rata.

However, when the premium is advanced under a premium finance agreement, the cancellation refund will be pro rata. Under such financed policies, we will be entitled to retain a minimum earned premium of 10% of the total policy premium or \$60, whichever is greater. The cancellation will be effective even if we have not made or offered a refund.

B. The following is added to the **Cancellation** Common Policy Condition:

7. If one of the reasons for cancellation in Paragraph **A.2.b.** or **D.2.b.(2)** exists, we may cancel this entire policy, even if the reason for cancellation pertains only to a new coverage or endorsement initially effective subsequent to the original issuance of this policy.

C. The following conditions are added:

1. Nonrenewal

If we decide not to renew this policy we will send notice as provided in Paragraph **C.3.** below.

2. Conditional Renewal

If we conditionally renew this policy subject to:

a. A change of limits;

b. A change in type of coverage;

c. A reduction of coverage;

d. An increased deductible;

e. An addition of exclusion; or

f. Increased premiums in excess of 10%, exclusive of any premium increase due to and commensurate with insured value added or increased exposure units; or as a result of experience rating, loss rating, retrospective rating or audit;

we will send notice as provided in Paragraph **C.3.** below.

3. Notices Of Nonrenewal And Conditional Renewal

a. If we decide not to renew this policy or to conditionally renew this policy as provided in Paragraphs **C.1.** and **C.2.** above, we will mail or deliver written notice to the first Named Insured shown in the Declarations at least 60 but not more than 120 days before:

(1) The expiration date; or

(2) The anniversary date if this is a continuous policy.

b. Notice will be mailed or delivered to the first Named Insured at the address shown in the policy and to the authorized agent or broker. If notice is mailed, proof of mailing will be sufficient proof of notice.

c. Notice will include the specific reason(s) for nonrenewal or conditional renewal, including the amount of any premium increase for conditional renewal and description of any other changes.

d. If we violate any of the provisions of Paragraph **C.3.a., b.** or **c.** above by sending the first Named Insured an incomplete or late conditional renewal notice or a late nonrenewal notice:

(1) And if notice is provided prior to the expiration date of this policy, coverage will remain in effect at the same terms and conditions of this policy at the lower of the current rates or the prior period's rates until 60 days after such notice is mailed or delivered, unless the first Named Insured, during this 60-day period, has replaced the coverage or elects to cancel;

- (2) And if the notice is provided on or after the expiration date of this policy, coverage will remain in effect at the same terms and conditions of this policy for another policy period, at the lower of the current rates or the prior period's rates, unless the first Named Insured, during this additional policy period, has replaced the coverage or elects to cancel.
 - e. If you elect to renew on the basis of a late conditional renewal notice, the terms, conditions and rates set forth in such notice shall apply:
 - (1) Upon expiration of the 60-day period, unless Subparagraph (2) below applies; or
 - (2) Notwithstanding the provisions in Paragraphs d.(1) and d.(2), as of the renewal date of the policy if the conditional renewal notice was sent at least 30 days prior to the expiration or anniversary date of the policy.
 - f. We will not send you notice of nonrenewal or conditional renewal if you, your authorized agent or broker or another insurer of yours mails or delivers notice that the policy has been replaced or is no longer desired.
- D.** The following provisions apply when the Commercial Property Coverage Part, the Farm Coverage Part or the Capital Assets Program (Output Policy) Coverage Part is made a part of this policy:
- 1.** Items **D.2.** and **D.3.** apply if this policy meets the following conditions:
 - a.** The policy is issued or issued for delivery in New York State covering property located in this state; and
 - b.** The policy insures:
 - (1) For loss of or damage to structures, other than hotels or motels, used predominantly for residential purposes and consisting of no more than four dwelling units; or
 - (2) For loss of or damage to personal property other than farm personal property or business property; or
 - (3) Against damages arising from liability for loss of, damage to or injury to persons or property, except liability arising from business or farming; and
 - c.** The portion of the annual premium attributable to the property and contingencies described in **1.b.** exceeds the portion applicable to other property and contingencies.
- 2.** Paragraph **2.** of the **Cancellation** Common Policy Condition is replaced by the following:
- 2. Procedure And Reasons For Cancellation**
- a.** We may cancel this entire policy by mailing or delivering to the first Named Insured written notice of cancellation at least:
 - (1) 15 days before the effective date of cancellation if we cancel for nonpayment of premium, provided however, that a notice of cancellation on this ground shall inform the first Named Insured of the amount due; or
 - (2) 30 days before the effective date of cancellation if we cancel for any other reason.
 - b.** But if this policy:
 - (1) Has been in effect for more than 60 days; or
 - (2) Is a renewal of a policy we issued; we may cancel this policy only for one or more of the following reasons:
 - (1) Nonpayment of premium, provided however, that a notice of cancellation on this ground shall inform the first Named Insured of the amount due;
 - (2) Conviction of a crime arising out of acts increasing the risk of loss;
 - (3) Discovery of fraud or material misrepresentation in obtaining the policy or in making a claim;
 - (4) Discovery of willful or reckless acts or omissions increasing the risk of loss;
 - (5) Physical changes in the covered property that make that property uninsurable in accordance with our objective and uniformly applied underwriting standards in effect when we:
 - (a) Issued the policy; or
 - (b) Last voluntarily renewed the policy;

(6) The Superintendent of Financial Services' determination that continuing the policy would violate Chapter 28 of the Insurance Law; or

(7) Required pursuant to a determination by the Superintendent of Financial Services that the continuation of our present premium volume would be hazardous to the interests of our policyholders, our creditors or the public.

3. The following are added:

a. Conditional Continuation

Instead of cancelling this policy, we may continue it on the condition that:

(1) The policy limits be changed; or

(2) Any coverage not required by law be eliminated.

If this policy is conditionally continued, we will mail or deliver to the first Named Insured written notice at least 20 days before the effective date of the change or elimination. We will mail or deliver our notice to the first Named Insured's last mailing address known to us. If notice is mailed, proof of mailing will be sufficient proof of notice. Delivery of the notice will be the same as mailing.

b. Nonrenewal

If, as allowed by the laws of New York State, we:

(1) Do not renew this policy; or

(2) Condition policy renewal upon:

(a) Change of limits; or

(b) Elimination of coverage;

we will mail or deliver written notice of nonrenewal or conditional renewal:

(a) At least 45 days; but

(b) Not more than 60 days;

before the expiration date of the policy. We will mail or deliver our notice to the first Named Insured's last mailing address known to us. If notice is mailed, proof of mailing will be sufficient proof of notice. Delivery of the notice will be the same as mailing.

E. The following is added to the Farm Property – Other Farm Provisions Form – Additional Coverages, Conditions, Definitions, the Commercial Property Coverage Part and the Capital Assets Program (Output Policy) Coverage Part:

When the property is subject to the Anti-arson Application in accordance with New York Department of Financial Services' Insurance Regulation No. 96, the following provisions are added:

If you fail to return the completed, signed and affirmed anti-arson application to us:

1. Or our broker or agent within 45 days of the effective date of a new policy, we will cancel the entire policy by giving 20 days' written notice to you and to the mortgageholder shown in the Declarations.

2. Before the expiration date of any policy, we will cancel the policy by giving written notice to you and to the mortgageholder shown in the Declarations at least 15 days before the effective date of cancellation.

The cancellation provisions set forth in **E.1.** and **E.2.** above supersede any contrary provisions in this policy including this endorsement.

If the notice in **E.1.** or **E.2.** above is mailed, proof of mailing will be sufficient proof of notice. Delivery of the notice will be the same as mailing.

F. The following applies to the Commercial Property Coverage Part, the Farm Coverage Part and the Capital Assets Program (Output Policy) Coverage Part:

Paragraphs **f.** and **g.** of the **Mortgageholders** Condition are replaced by the following:

f. Cancellation

(1) If we cancel this policy, we will give written notice to the mortgageholder at least:

(a) 10 days before the effective date of cancellation if we cancel for your nonpayment of premium; or

(b) 30 days before the effective date of cancellation if we cancel for any other reason.

(2) If you cancel this policy, we will give written notice to the mortgageholder. With respect to the mortgageholder's interest only, cancellation will become effective on the later of:

- (a) The effective date of cancellation of the insured's coverage; or
- (b) 10 days after we give notice to the mortgageholder.

g. Nonrenewal

(1) If we elect not to renew this policy, we will give written notice to the mortgageholder at least 10 days before the expiration date of this policy.

(2) If you elect not to renew this policy, we will give written notice to the mortgageholder. With respect to the mortgageholder's interest only, nonrenewal will become effective on the later of:

- (a) The expiration date of the policy; or
- (b) 10 days after we give notice to the mortgageholder.

G. The following provisions apply when the following are made a part of this policy:

Commercial General Liability Coverage Part

Employment-Related Practices Liability Coverage Part

Farm Liability Coverage Form

Liquor Liability Coverage Part

Products/Completed Operations Liability Coverage Part

- 1. The aggregate limits of this policy as shown in the Declarations will be increased in proportion to any policy extension provided in accordance with Paragraph **C.3.d.** above.
- 2. The last sentence of Limits Of Insurance does not apply when the policy period is extended because we sent the first Named Insured an incomplete or late conditional renewal notice or a late nonrenewal notice.

COMMON POLICY CONDITIONS

All Coverage Parts included in this policy are subject to the following conditions.

A. Cancellation

1. The first Named Insured shown in the Declarations may cancel this policy by mailing or delivering to us advance written notice of cancellation.
2. We may cancel this policy by mailing or delivering to the first Named Insured written notice of cancellation at least:
 - a. 10 days before the effective date of cancellation if we cancel for nonpayment of premium; or
 - b. 30 days before the effective date of cancellation if we cancel for any other reason.
3. We will mail or deliver our notice to the first Named Insured's last mailing address known to us.
4. Notice of cancellation will state the effective date of cancellation. The policy period will end on that date.
5. If this policy is cancelled, we will send the first Named Insured any premium refund due. If we cancel, the refund will be pro rata. If the first Named Insured cancels, the refund may be less than pro rata. The cancellation will be effective even if we have not made or offered a refund.
6. If notice is mailed, proof of mailing will be sufficient proof of notice.

B. Changes

This policy contains all the agreements between you and us concerning the insurance afforded. The first Named Insured shown in the Declarations is authorized to make changes in the terms of this policy with our consent. This policy's terms can be amended or waived only by endorsement issued by us and made a part of this policy.

C. Examination Of Your Books And Records

We may examine and audit your books and records as they relate to this policy at any time during the policy period and up to three years afterward.

D. Inspections And Surveys

1. We have the right to:
 - a. Make inspections and surveys at any time;

- b. Give you reports on the conditions we find; and
- c. Recommend changes.

2. We are not obligated to make any inspections, surveys, reports or recommendations and any such actions we do undertake relate only to insurability and the premiums to be charged. We do not make safety inspections. We do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. And we do not warrant that conditions:
 - a. Are safe or healthful; or
 - b. Comply with laws, regulations, codes or standards.

3. Paragraphs 1. and 2. of this condition apply not only to us, but also to any rating, advisory, rate service or similar organization which makes insurance inspections, surveys, reports or recommendations.

4. Paragraph 2. of this condition does not apply to any inspections, surveys, reports or recommendations we may make relative to certification, under state or municipal statutes, ordinances or regulations, of boilers, pressure vessels or elevators.

E. Premiums

The first Named Insured shown in the Declarations:

1. Is responsible for the payment of all premiums; and
2. Will be the payee for any return premiums we pay.

F. Transfer Of Your Rights And Duties Under This Policy

Your rights and duties under this policy may not be transferred without our written consent except in the case of death of an individual named insured.

If you die, your rights and duties will be transferred to your legal representative but only while acting within the scope of duties as your legal representative. Until your legal representative is appointed, anyone having proper temporary custody of your property will have your rights and duties but only with respect to that property.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES – FRAUD

This endorsement modifies insurance provided under the following:

CAPITAL ASSETS PROGRAM (OUTPUT POLICY) COVERAGE PART
COMMERCIAL AUTOMOBILE COVERAGE PART
COMMERCIAL INLAND MARINE COVERAGE PART
COMMERCIAL PROPERTY COVERAGE PART
EQUIPMENT BREAKDOWN COVERAGE PART
FARM COVERAGE PART – FARM PROPERTY – OTHER FARM PROVISIONS FORM – ADDITIONAL
COVERAGES, CONDITIONS, DEFINITIONS
FARM COVERAGE PART – LIVESTOCK COVERAGE FORM
FARM COVERAGE PART – MOBILE AGRICULTURAL MACHINERY AND EQUIPMENT COVERAGE
FORM

The **CONCEALMENT, MISREPRESENTATION OR FRAUD** Condition is replaced by the following:

FRAUD

We do not provide coverage for any insured ("insured") who has made fraudulent statements or engaged in fraudulent conduct in connection with any loss ("loss") or damage for which coverage is sought under this policy.

However, with respect to insurance provided under the COMMERCIAL AUTOMOBILE COVERAGE PART, we will provide coverage to such "insured" for damages sustained by any person who has not made fraudulent statements or engaged in fraudulent conduct if such damages are otherwise covered under the policy.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CAP ON LOSSES FROM CERTIFIED ACTS OF TERRORISM

This endorsement modifies insurance provided under the following:

BOILER AND MACHINERY COVERAGE PART
COMMERCIAL INLAND MARINE COVERAGE PART
COMMERCIAL PROPERTY COVERAGE PART
EQUIPMENT BREAKDOWN COVERAGE PART
FARM COVERAGE PART
STANDARD PROPERTY POLICY

A. Cap On Certified Terrorism Losses

"Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a "certified act of terrorism" include the following:

1. The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
2. The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

If aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year and we have met our insurer deductible under the Terrorism Risk Insurance Act, we shall not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury.

B. Application Of Exclusions

The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for any loss which would otherwise be excluded under this Coverage Part or Policy, such as losses excluded by the Nuclear Hazard Exclusion or the War And Military Action Exclusion.

COMMERCIAL INLAND MARINE CONDITIONS

The following conditions apply in addition to the Common Policy Conditions and applicable Additional Conditions in Commercial Inland Marine Coverage Forms:

LOSS CONDITIONS

A. Abandonment

There can be no abandonment of any property to us.

B. Appraisal

If we and you disagree on the value of the property or the amount of loss, either may make written demand for an appraisal of the loss. In this event, each party will select a competent and impartial appraiser. The two appraisers will select an umpire. If they cannot agree, either may request that selection be made by a judge of a court having jurisdiction. The appraisers will state separately the value of the property and amount of loss. If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will be binding. Each party will:

1. Pay its chosen appraiser; and
2. Bear the other expenses of the appraisal and umpire equally.

If there is an appraisal, we will still retain our right to deny the claim.

C. Duties In The Event Of Loss

You must see that the following are done in the event of loss or damage to Covered Property:

1. Notify the police if a law may have been broken.
2. Give us prompt notice of the loss or damage. Include a description of the property involved.
3. As soon as possible, give us a description of how, when and where the loss or damage occurred.
4. Take all reasonable steps to protect the Covered Property from further damage, and keep a record of your expenses necessary to protect the Covered Property, for consideration in the settlement of the claim. This will not increase the Limit of Insurance. However, we will not pay for any subsequent loss or damage resulting from a cause of loss that is not a Covered Cause of Loss. Also, if feasible, set the damaged property aside and in the best possible order for examination.

5. You will not, except at your own cost, voluntarily make a payment, assume any obligation, or incur any expense without our consent.

6. As often as may be reasonably required, permit us to inspect the property proving the loss or damage and examine your books and records.

Also permit us to take samples of damaged and undamaged property for inspection, testing and analysis, and permit us to make copies from your books and records.

7. We may examine any insured under oath, while not in the presence of any other insured and at such times as may be reasonably required, about any matter relating to this insurance or the claim, including an insured's books and records. In the event of an examination, an insured's answers must be signed.

8. Send us a signed, sworn proof of loss containing the information we request to settle the claim. You must do this within 60 days after our request. We will supply you with the necessary forms.

9. Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or suit.

10. Cooperate with us in the investigation or settlement of the claim.

D. Insurance Under Two Or More Coverages

If two or more of this policy's coverages apply to the same loss or damage, we will not pay more than the actual amount of the loss or damage.

E. Loss Payment

1. We will give notice of our intentions within 30 days after we receive the sworn proof of loss.
2. We will not pay you more than your financial interest in the Covered Property.
3. We may adjust losses with the owners of lost or damaged property if other than you. If we pay the owners, such payments will satisfy your claim against us for the owners' property. We will not pay the owners more than their financial interest in the Covered Property.
4. We may elect to defend you against suits arising from claims of owners of property. We will do this at our expense.

5. We will pay for covered loss or damage within 30 days after we receive the sworn proof of loss if you have complied with all the terms of this Coverage Part and:

- a. We have reached agreement with you on the amount of the loss; or
- b. An appraisal award has been made.

6. We will not be liable for any part of a loss that has been paid or made good by others.

F. Other Insurance

- 1. You may have other insurance subject to the same plan, terms, conditions and provisions as the insurance under this Coverage Part. If you do, we will pay our share of the covered loss or damage. Our share is the proportion that the applicable Limit of Insurance under this Coverage Part bears to the Limits of Insurance of all insurance covering on the same basis.
- 2. If there is other insurance covering the same loss or damage, other than that described in 1. above, we will pay only for the amount of covered loss or damage in excess of the amount due from that other insurance, whether you can collect on it or not. But we will not pay more than the applicable Limit of Insurance.

G. Pair, Sets Or Parts

1. Pair Or Set

In case of loss or damage to any part of a pair or set we may:

- a. Repair or replace any part to restore the pair or set to its value before the loss or damage; or
- b. Pay the difference between the value of the pair or set before and after the loss or damage.

2. Parts

In case of loss or damage to any part of Covered Property consisting of several parts when complete, we will only pay for the value of the lost or damaged part.

H. Recovered Property

If either you or we recover any property after loss settlement, that party must give the other prompt notice. At your option, the property will be returned to you. You must then return to us the amount we paid to you for the property. We will pay recovery expenses and the expenses to repair the recovered property, subject to the Limit of Insurance.

I. Reinstatement Of Limit After Loss

The Limit of Insurance will not be reduced by the payment of any claim, except for total loss or damage of a scheduled item, in which event we will refund the unearned premium on that item.

J. Transfer Of Rights Of Recovery Against Others To Us

If any person or organization to or for whom we make payment under this Coverage Part has rights to recover damages from another, those rights are transferred to us to the extent of our payment. That person or organization must do everything necessary to secure our rights and must do nothing after loss to impair them. But you may waive your rights against another party in writing:

- 1. Prior to a loss to your Covered Property.
- 2. After a loss to your Covered Property only if, at time of loss, that party is one of the following:
 - a. Someone insured by this insurance; or
 - b. A business firm:
 - (1) Owned or controlled by you; or
 - (2) That owns or controls you.

This will not restrict your insurance.

GENERAL CONDITIONS

A. Concealment, Misrepresentation Or Fraud

This Coverage Part is void in any case of fraud, intentional concealment or misrepresentation of a material fact, by you or any other insured, at any time, concerning:

- 1. This Coverage Part;
- 2. The Covered Property;
- 3. Your interest in the Covered Property; or
- 4. A claim under this Coverage Part.

B. Control Of Property

Any act or neglect of any person other than you beyond your direction or control will not affect this insurance.

The breach of any condition of this Coverage Part at any one or more locations will not affect coverage at any location where, at the time of loss or damage, the breach of condition does not exist.

C. Legal Action Against Us

No one may bring a legal action against us under this Coverage Part unless:

- 1. There has been full compliance with all the terms of this Coverage Part; and
- 2. The action is brought within 2 years after you first have knowledge of the direct loss or damage.

D. No Benefit To Bailee

No person or organization, other than you, having custody of Covered Property will benefit from this insurance.

E. Policy Period, Coverage Territory

We cover loss or damage commencing:

1. During the policy period shown in the Declarations; and
2. Within the coverage territory.

F. Valuation

The value of property will be the least of the following amounts:

1. The actual cash value of that property;

2. The cost of reasonably restoring that property to its condition immediately before loss or damage; or

3. The cost of replacing that property with substantially identical property.

In the event of loss or damage, the value of property will be determined as of the time of loss or damage.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES

The **Appraisal** Loss Condition in the Commercial Inland Marine Conditions is replaced by the following:

Appraisal

If we and you disagree on the value of the property, the extent of the loss or damage or the amount of the loss or damage, either may make written demand for an appraisal of the loss. In this event, each party will select a competent and impartial appraiser. The two appraisers will select an umpire. If they cannot agree, either may request that the selection be made by a judge of a court having jurisdiction. The appraisers will state separately the value of the property, the extent of the loss or damage and the amount of the loss or damage. If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will be binding.

Each party will:

- 1.** Pay its chosen appraiser; and
- 2.** Bear the other expenses of the appraisal and umpire equally.

If there is an appraisal, we will still retain our right to deny the claim.

APPARATUS AND PORTABLE EQUIPMENT COVERAGE FORM

In return for the payment of premium and subject to all the terms of the policy, we agree to provide the insurance as stated in this policy. Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered. Throughout this policy the words "you" and "your" refer to the Named Insured shown in the Declarations. The words "we", "us" and "our" refer to the Company providing this insurance. Other words and phrases that appear in quotation marks have special meaning. Refer to the **Definitions** section.

A. Coverage**1. Covered Property**

We will pay for direct loss or damage to Covered Property caused by or resulting from a Covered Cause of Loss. Covered Property, as used in this Coverage Form, means:

- a. "Apparatus" as listed and described in the Schedule of Apparatus;
- b. "Portable Equipment;" and
- c. "Other Property" as listed and described in the Declarations or the Coverage Extensions.

2. Property Not Covered

Covered Property does not include:

- a. Buildings;
- b. Your building maintenance equipment used to maintain or service the building or structure you occupy unless specifically listed and described in the Declarations;
- c. Your furniture, furnishings and building fixtures unless specifically listed and described in the Declarations;
- d. Valuable papers and records, stamps, money, securities, precious metals, or gems, except jewelry;
- e. "Computers and software", however this exclusion does not apply to "permanently attached special equipment."

3. Covered Cause of Loss

Covered Cause of Loss means risks of direct physical loss or damage to Covered Property except those causes of loss listed in **Exclusions**.

B. Exclusions

- 1. We will not pay for loss or damage caused directly or indirectly by any of the following. Such loss or damage is excluded regardless of any other cause or event that contributed concurrently or in any sequence to the loss:
 - a. Seizure or destruction of property by order of governmental authority. But we will pay for loss or damage caused by or resulting from acts of destruction ordered by governmental authority and taken at the time of a fire to prevent its spread if the fire would be covered under this Coverage Form. This exclusion does not apply to seizure or destruction due to covered property being contaminated by or exposed to non-radioactive hazardous materials or other non-radioactive substances.
 - b. Any weapon employing atomic fission or fusion; nuclear reaction or radiation, or radioactive contamination from any other cause. But if loss or damage by a Covered Cause of Loss results, we will pay for the loss or damage caused by that Covered Cause of Loss.
 - c. War, including undeclared or civil war; warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; insurrection, rebellion, revolution, usurped power or action taken by governmental authority in hindering or defending against any of these.

2. We will not pay for loss or damage caused by or resulting from any of the following:
- a. Dishonest or criminal acts by you, your "members" or anyone else to whom you entrust the property for any purpose:
 - (1) Acting alone or in collusion with others; or
 - (2) Whether or not occurring during the hours of employment.

This exclusion does not apply to Covered Property that is entrusted to others who are carriers for hire or to acts of destruction by your "members"; but theft by "members" is not covered.

- b. Delay, loss of use, loss of market or any other consequential loss.
 - c. Any mysterious disappearance or unexplained shortage discovered by taking inventory.
3. We will not pay for loss or damage caused by or resulting from any of the following:
- a. Wear, tear, hidden or latent defect, gradual deterioration, mechanical breakdown, or any quality in the property that causes it to damage or destroy itself, depreciation, corrosion or rust.
 - b. Freezing, if the loss or damage is caused by your failure to properly maintain the damaged property. Under no circumstances, however, is loss or damage caused by freezing to the engine or cooling system of an "Apparatus" covered by this policy.

But if loss or damage by a Covered Cause of Loss results, we will pay for the loss or damage caused by that Covered Cause of Loss.

4. We will not pay for "loss" to an "Apparatus" due to "diminution in value".

C. What We Will Pay

1. Apparatus

We will not pay for loss or damage in any one occurrence until the amount of loss or damage exceeds the Deductible shown in the Declarations applying to "Apparatus". We will then pay the amount of loss or damage as determined below in excess of the applicable deductible.

In the event of loss or damage to covered "Apparatus", we will pay the lesser of:

- a. The Agreed Value shown for the lost or damaged "Apparatus" on the Schedule of Apparatus;
- b. The cost of a new "Apparatus" manufactured to similar specifications as the lost or damaged "Apparatus" including any enhancements due to changes in technology, safety or equipment standards set by governmental authority or any nationally recognized standards setting organizations; or
- c. The cost to repair the damage to the "Apparatus" without deduction for depreciation using new parts identical to the damaged parts or, if identical new parts are not available, the cost of other parts of similar quality and usefulness. Such repairs shall include:
 - (1) any enhancements to the damaged parts of the "Apparatus" due to changes in technology, safety or equipment standards set by governmental authority or any nationally recognized standards setting organizations provided that such enhancements do not increase the amount needed to repair the loss or damage by more than 50%; and
 - (2) the cost to recertify the lost or damaged parts of the "Apparatus" if such recertification is required by a government agency or nationally recognized standards setting organization.

If the estimated cost to repair the loss or damage under paragraph **C.1.c.** meets or exceeds 75% of the Agreed Value shown for the lost or damaged property on the Schedule of Apparatus, at your option we will pay you the amount to which you would be entitled under paragraph **C.1.a.** or **C.1.b.**, whichever is less. If we make a payment under these terms, or otherwise under the terms of paragraph **C.1.a.** or **C.1.b.**, we shall have the rights to all recovery and salvage as stated in **Loss Conditions**.

2. Portable Equipment

In the event of covered loss or damage to "Portable Equipment" for which a Deductible is shown in the Declarations, we will pay the amount necessary to repair or replace the covered property without deduction for depreciation.

We will also pay up to \$10,000 for the cost to recertify your "Portable Equipment" arising from covered loss or damage if such recertification is required by a government agency or nationally recognized standards setting organization.

3. Other Property

In the event of covered loss or damage to your "Other Property", we will pay the amount necessary to repair or replace the covered property without deduction for depreciation, or the Limit of Insurance, whichever is less.

4. Deductible

- a. We will not pay for loss or damage in any one occurrence until the amount of the adjusted loss or damage exceeds the Deductible shown in the Declarations. We will then pay the amount of the adjusted loss or damage in excess of the Deductible, up to the applicable Limit of Insurance (if any). The deductible applicable to "Apparatus" does not apply to damage or breakage of windshields and window glass or to losses caused by fire or lightning. No deductible shall apply to such losses.
- b. In the event of covered loss or damage arising out of a single occurrence where more than one deductible applies, then we will only apply one deductible, the largest, and the other deductibles will be waived.
- c. In the event of covered loss or damage arising out of a single occurrence, accident or event that is covered under this coverage part and any other coverage part of this policy or any other policy issued by us to you, we will only apply one deductible, the largest, to all covered loss or damage and the other deductibles will be waived.
- d. Sections 4.b. and 4.c. above shall apply only if such application results in a greater claim payment to you than the claim payment we would have made if not applied.

D. Coverage Extensions

1. Member's Property

We will pay for loss or damage from a Covered Cause of Loss to your "member's" personal property if the loss or damage occurs:

- a. At your premises;
- b. While the "member" is in possession of the property when responding to an emergency. Coverage shall only apply while in route to the emergency scene, during the emergency (including property at the scene that is temporarily not in the "member's" possession), and returning directly from the emergency scene to the "member's" home, place of employment, or to your premises;
- c. While the "member" is in possession of the property when otherwise performing their duties for you. Such coverage shall include loss or damage that occurs while attending training activities, including while in route to the training location, during training (including property at the training location that is temporarily not in the "member's" possession), and while returning directly from the training location to the "member's" home, place of employment, or to your premises.

We will pay the cost to repair or replace the lost or damaged property without deduction for depreciation.

As used in this coverage extension, your "member's" personal property excludes "Apparatus". As used in this coverage extension, your "member's" personal property shall include all-terrain vehicles, watercraft, golf carts or snowmobiles.

Subparagraph A.2.e. does not apply to this coverage extension.

No deductible applies to this coverage extension.

2. Member's Vehicles

We will pay for loss or damage from a Covered Cause of Loss to:

- a. Special equipment such as light bars, sirens, traffic signal control devices, cellular telephones, two-way radios, scanners, antennas, and computers, that is permanently attached to or installed in your "member's" personally owned "Apparatus";
- b. Any custom painting, decals or gold leaf lettering on your "member's" personally owned "Apparatus", provided that such painting, decals, or lettering are required by or related to your operations;
- c. Your "member's" personal "Apparatus" (whether or not it is owned by the "member") if the loss or damage occurs;
 - (1) at your premises while the "member" is on duty or otherwise performing their duties for you;
 - (2) while the "member" is using the "Apparatus" to respond to an emergency; coverage shall apply while in route to the emergency scene, during the emergency, and returning directly from the emergency scene to the "member's" home, place of employment, or to your premises;
 - (3) while the "member" is using the "Apparatus" within the scope of their duties for you; such coverage shall include use of the "Apparatus" to attend training activities, including while in route to the training location, during training, and while returning directly from the training location to the "member's" home, place of employment, or to your premises.

If the loss or damage is insured under another insurance policy, we will pay the amount of the deductible that applies to the loss or damage under such other policy. If there is no other insurance, we will pay the cost to repair or replace the loss or damage, without deduction for depreciation, or the actual cash value of the "Apparatus", whichever is less.

No deductible applies to this coverage extension.

3. Substitute Apparatus

We will pay up to \$1,000,000 per occurrence for loss or damage from a Covered Cause of Loss to an "Apparatus" which you do not own if the "Apparatus" is being used as a substitute for a covered "Apparatus" that is temporarily out of service for a period not exceeding six (6) months.

We will pay the actual cash value of the substitute "Apparatus" or the amount for which you are legally liable. However, if the insurance policy of the owner of the substitute "Apparatus" provides coverage on a basis other than actual cash value, we will adjust the loss based on the provisions of the owner's insurance policy.

The deductible applying to "Apparatus" on the Declarations applies to this coverage extension.

This coverage extension does not apply to an "Apparatus" for which coverage is more specifically provided under **A. Coverage**.

4. Newly Acquired Apparatus

We will pay up to \$1,000,000 per occurrence for loss or damage from a Covered Cause of Loss to an "Apparatus" that you acquire during the policy period for a period of sixty (60) days from the date of acquisition.

The amount we pay will be determined in accordance with **C. What We Will Pay** utilizing an Agreed Value of \$1,000,000 for the newly acquired "Apparatus".

The deductible applying to "Apparatus" on the Declarations applies to this coverage extension.

This coverage extension does not apply to an "Apparatus" for which coverage is more specifically provided under **A. Coverage**.

5. Hired Apparatus

We will pay up to \$500,000 per occurrence for loss or damage from a Covered Cause of Loss to an "Apparatus" that you borrow, lease, hire or rent for your temporary use. This coverage extension also applies to an "Apparatus" personally leased, hired or rented by one of your "members" on your behalf or while performing their duties for you.

We will pay the actual cash value of the "Apparatus" or the amount for which you are legally liable. However, if the insurance policy of the owner of the "Apparatus" provides coverage on a basis other than actual cash value, we will adjust the loss based on the provisions of the owner's insurance policy.

In addition, we will pay those sums that you or your "member" are legally obligated to pay as damages for any resulting indirect loss incurred by the owner of the property arising from loss of use of the property.

This coverage extension does not apply to any "Apparatus" borrowed, leased, hired or rented from any of your "members".

This coverage extension does not apply to an "Apparatus" for which coverage is more specifically provided under **A. Coverage**.

The deductible applying to "Apparatus" on the Declarations applies to this coverage extension.

6. Rental Reimbursement – Apparatus

We will pay up to \$15,000 for the cost to rent a substitute "Apparatus" because of loss or damage to a covered "Apparatus" from a Covered Cause of Loss. We will not pay more than the amount of actual and necessary rental expenses that you incur. This coverage does not apply if there is a spare, reserve or surplus "Apparatus" available for your use which is a suitable substitute for the lost or damaged "Apparatus."

We will only pay rental expenses for the number of days reasonably required to repair or replace the lost or damaged "Apparatus" or 90 days, whichever is less.

No deductible applies to this coverage extension.

7. Rental Reimbursement - Portable Equipment

We will pay up to \$10,000 per occurrence for the cost to rent substitute "Portable Equipment" because of loss or damage to your "Portable Equipment" from a Covered Cause of Loss. We will only pay rental costs that you necessarily incur while your "Portable Equipment" is being cleaned, disinfected, decontaminated, repaired or replaced.

No deductible applies to this coverage extension.

8. Debris Removal

We will pay up to \$25,000 per occurrence for the cost to remove debris arising from loss or damage to Covered Property from a Covered Cause of Loss.

The deductible applying to such Covered Property on the Declarations applies to this coverage extension.

9. Towing and Labor

If a covered "Apparatus" is disabled, we will pay the actual labor costs for necessary repairs performed at the place of disablement. We will also pay the actual cost of towing from the place of disablement to an appropriate repair facility. In the event that the disabled "Apparatus" must be towed from the place of disablement to a temporary storage location, and then to an appropriate repair facility, we will pay the actual cost of towing for both trips.

If such disablement takes place more than 250 miles from the usual garage location of the covered "Apparatus", we will not pay more than \$2,500 for each disablement of each covered "Apparatus". If such disablement takes place within 250 miles of the usual garage location of the covered "Apparatus", we will not pay more than the actual cost of towing and labor described above.

If a covered "Apparatus" is damaged by a Covered Cause of Loss, we will pay the actual cost of towing from the place of damage to an appropriate repair facility regardless of the distance from the usual garage location. In the event that the damaged "Apparatus" must be towed from the place of damage to a temporary storage location, and then to an appropriate repair facility, we will pay the actual cost of towing for both trips.

No deductible applies to this coverage extension.

10. Commandeered and Impounded Property

We will pay for direct physical loss or damage from a Covered Cause of Loss to "Commandeered Property" and "Impounded Property".

We will pay the actual cash value of the lost or damaged property or the amount for which you are legally liable. However, if the insurance policy of the owner of the "Commandeered Property" or "Impounded Property" provides coverage on a basis other than actual cash value, we will adjust the loss based on the provisions of the owner's insurance policy.

In addition, we will pay those sums that you are legally obligated to pay as damages for any resulting indirect loss incurred by the owner of the property arising from loss of use of the property.

Under this coverage extension, we do not cover:

- a.** Personal effects belonging to you, your partners, officers, employees or volunteers;
- b.** Money and securities;
- c.** "Impounded property" before an official inventory of the property is taken and signed by the owner of the property.

However, we will cover automobiles, watercraft, all terrain vehicles and snowmobiles belonging to your officers, employees or volunteers if such are commandeered at the direction of the officer in charge of the emergency scene.

Coverage is provided for "commandeered property" only for the time you officially use the property to handle an "emergency situation" plus the reasonable time necessary to return the property. Coverage is provided for "impounded property" only for the time you are in possession of the property in your official capacity of enforcing the laws of the local, state or Federal government. In no case will coverage extend beyond the policy period.

Subparagraph **A.2.e.** does not apply to this coverage extension.

No deductible applies to this coverage extension.

11. Patient's Property

We will pay for direct physical loss or damage by a Covered Cause of Loss to the personal effects of fire and rescue victims, medical patients, and the immediate relatives of such victims and patients, while such property is in your care, custody or control at the scene of an emergency or while in transit to or from a medical care facility.

We will pay up to \$50,000 per occurrence or the amount necessary to repair or replace the lost or damaged property without deduction for depreciation, whichever is less.

Subparagraphs **A.2.d.**, **A.2.e.**, and **B.2.a.** do not apply to this coverage extension.

This coverage extension is subject to a deductible of \$100 per occurrence.

12. Computers

We will pay for direct physical loss or damage from a Covered Cause of Loss to "computers and software" you own, lease or rent from others, or for which you are legally responsible while in transit or away from your premises. Such loss shall include loss or damage caused by computer virus or accidental erasure.

We will pay the amount necessary to repair or replace the "computers and software", without deduction for depreciation, including the research and other costs necessary to reproduce, repair, replace or restore the lost or damaged property provided you actually repair, replace or reproduce such property. We will not pay more \$25,000 per occurrence for all such loss, damage and costs.

Subparagraph **A.2.e.** does not apply to this coverage extension.

This coverage extension is subject to a deductible of \$100 per occurrence.

13. Permanently Installed Property Off Premises

We will pay for direct physical loss or damage from a Covered Cause of Loss to your property that is permanently installed at a premises which is not regularly used for the storage of your "Apparatus" or "Portable Equipment." Such property may include, but is not limited to, sirens, antennae, communication system relay stations, call boxes, traffic control devices, hydrants, fences, flag poles, light poles, monuments or memorials.

We will pay up to \$200,000 per occurrence or the amount necessary to repair or replace the lost or damaged property without deduction for depreciation, whichever is less.

This coverage extension does not apply to:

- a.** Covered Property in or on an "Apparatus";
- b.** "Portable Equipment."

This coverage extension is subject to a deductible of \$100 per occurrence.

14. Rental Reimbursement – Members

We will pay \$40 per day for the cost to rent a substitute "Apparatus" because of loss or damage to a "member's" personal "Apparatus" (whether or not it is owned by the "member") from a Covered Cause of Loss if the loss or damage occurs while the "member" is using the "Apparatus" to respond to an emergency. Coverage shall apply while in route to the emergency scene, during the emergency, and returning directly from the emergency scene to the "member's" home, place of employment, or to your premises.

We will not pay more than the amount of actual and necessary rental expenses that the "member" incurs. This coverage does not apply if the "member's" personal "Apparatus" (whether or not it is owned by the "member") is insured under another insurance policy for rental reimbursement.

We will only pay rental expenses for the number of days reasonably required to repair or replace the lost or damaged "Apparatus" or 30 days, whichever is less.

No deductible applies to this coverage extension.

15. Deductible Reimbursement – Members

In the event of direct physical loss or damage to a "member's" permanent residence, which is covered by the "member's" insurance policy, we will pay the amount of the deductible applying to such loss or damage. Coverage applies to real property only and the loss or damage must occur while the "member" is responding to an emergency. Coverage shall apply while the "member" is in route to an emergency scene, during the emergency, and returning directly from an emergency scene to the "member's" permanent residence, place of employment, or to your premises.

The most we will pay under this coverage extension is \$1,000.

No deductible applies to this coverage extension.

16. Additional Living Expenses – Members

In the event of direct physical loss or damage to a "member's" permanent residence, which is covered by the "member's" insurance policy, we will pay reasonable and necessary living expenses incurred by the "member" due to the loss of use of their residence for up to three days following the loss. Coverage applies to real property only and the loss or damage must occur while the "member" is responding to an emergency. Coverage shall apply while the "member" is in route to an emergency scene, during the emergency, and returning directly from an emergency scene to the "member's" permanent residence, place of employment, or to your premises.

The most we will pay under this coverage extension is \$1,000.

No deductible applies to this coverage extension.

17. Property on Loan

We will pay for loss or damage from a Covered Cause of Loss to an "Apparatus" or "permanently attached special equipment" that is on loan to you under the Federal Excess Property Program (FEPP), FireFighter Property Program (FFP), or any similar state or federal program. Coverage for such "permanently attached special equipment" applies whether attached to an "Apparatus" on loan to you or an "Apparatus" owned by you.

We will pay the lesser of the actual cash value of the covered property or the amount necessary to repair or replace the covered property with property of like kind and quality. No payment will be made under this coverage extension unless the covered property is actually repaired or replaced.

We shall have no right to salvage of covered property under this coverage extension.

This coverage extension does not apply to an "Apparatus" for which coverage is more specifically provided under **A. Coverage**.

The deductible applying to "Apparatus" on the Declarations applies to this coverage extension.

18. Airbags

Exclusion **3.a.** does not apply to the accidental discharge of an airbag. Coverage under this coverage extension is excess over any valid and collectible warranty.

No deductible applies to this coverage extension.

19. Drones

We will pay up to \$25,000 per occurrence for direct physical loss or damage from a Covered Cause of Loss to an unmanned aerial device, more commonly known as a drone, including any permanently attached equipment such as a camera, which is normally used by you away from your premises in the performance of your duties as an emergency service organization. We will pay the amount necessary to repair or replace the covered property without deduction for depreciation.

This coverage extension is subject to a deductible of \$500 per occurrence.

E. Definitions

1. "Apparatus" means a land motor vehicle, trailer or semi-trailer designed for travel on public roads and its "permanently attached special equipment." "Apparatus" does not include "Portable Equipment".
2. "Commandeered Property" means real and personal property belonging to someone else including but not limited to automobiles, watercraft, all-terrain vehicles, golf carts, snowmobiles, aircraft and animals that you commandeer, seize, borrow or take over for official use to handle an "emergency situation" or to enforce the laws of the local, state or federal government.
3. "Computers and software" means computers, printers and related peripheral computer equipment, and programs, files and data which exist on computer disks, drives or tapes.
4. "Diminution in value" means the actual or perceived loss in market value or resale value which results from direct loss or damage to Covered Property.
5. "Emergency Situation" means an unexpected situation demanding immediate, official action.
6. "Impounded Property" means real and personal property belonging to someone else including but not limited to automobiles, watercraft, aircraft and animals that you take and hold in legal custody in your official capacity of enforcing the laws of the local, state or Federal government.
7. "Member" includes your officers, directors, commissioners, board members, trustees, employees (including leased employees) and volunteers.
8. "Other Property" means property, including property of others, specifically described in the Declarations.
9. "Permanently attached special equipment" means property which is welded, bolted, screwed or wired to the "Apparatus", or held in place with set screws or tension.
10. "Portable Equipment" means property, including property of others, normally used by you away from your premises in the performance of your duties as an emergency service organization. Such property includes

materials used away from your premises for firefighting, rescue and emergency medical services, or for teaching and training purposes, including community awareness and education. "Portable Equipment" includes watercraft, all-terrain vehicles, golf carts and snowmobiles if such property is not covered under this or another coverage form or policy issued by us where it is more specifically described.

"Portable Equipment" does not include "Apparatus".

F. Loss Conditions

1. Other Insurance

As respects **D.1. Member's Property, D.3. Substitute Apparatus, D.5. Hired Apparatus, D.10. Commandeered and Impounded Property, and D.11. Patient's Property**, this insurance shall be primary to any other insurance issued to the owner of the lost or damaged property.

2. Privilege to Adjust with Owner

In the event of loss or damage involving property of others in your care, custody and control, we have the right to:

- a. Settle the claim with the owners of the property. A receipt for payment from the owners of that property will satisfy any claim of yours;
- b. Provide a defense for legal proceedings against you. If provided, the expense of this defense will be at our cost and will not reduce the applicable Limit of Insurance under this insurance. We have no duty to provide such defense.

3. Recoveries

If any person or organization to whom or for whom we make payment under this Coverage Form has rights to recover damages from another, those rights are transferred to us to the extent of our payment. That person or organization must do everything necessary to secure our rights and must do nothing after the loss to impair them.

4. Liberalization

If a revision of a form or endorsement which would broaden coverage without an additional premium is adopted by us during the policy period, or within six (6) months before this coverage is effective, the broadened coverage will apply.

5. Coverage Territory

Coverage provided by this Coverage Form shall only apply to loss or damage to covered property that is located within the following territory at the time of loss or damage:

- a. The United States of America;
- b. Puerto Rico;
- c. Canada.

ARCH INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

MEMBER'S VEHICLES – NEW YORK

This endorsement modifies the insurance provided under the following:

APPARATUS AND PORTABLE EQUIPMENT COVERAGE FORM

Extension **2. Member's Vehicles** and **14. Rental Reimbursement - Members** under **D. Coverage Extensions** is deleted.

ARCH INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

LOSS PAYABLE

Insured: Stonebridge Contracting Inc

Policy No.: MEIM10653700 Effective Date: 4/1/2025

This endorsement modifies the insurance provided under the following:

APPARATUS AND PORTABLE EQUIPMENT COVERAGE FORM

PORTABLE EQUIPMENT COVERAGE FORM

SCHEDULE

Description of Covered Property

2022 Sutphen Pumper Tanker
1S9A1BNEXN3003180

Loss Payee (name and address)

Bank of Greene County c/o Loan Servicing - 341 Main St., PO Box 470,
Catskill, NY 12414

- A. We will pay, as interest may appear, you and the Loss Payee shown in the Schedule for loss or damage to covered property shown in the Schedule.
- B. If we make any payments to the Loss Payee, and the Loss Payee has rights to recover damages from another party, those rights are transferred to us. The Loss Payee must do everything necessary to secure our rights and must do nothing after the loss to impair those rights.
- C. In the event of cancellation of the policy, we will send advance written notice of cancellation to the Loss Payee at the address shown in the Schedule.

ARCH INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AUTOMATIC INCREASE FOR APPARATUS

Insured Stonebridge Contracting Inc

Policy No.:MEIM10653700 Effective Date: 4/1/2025

This endorsement modifies the insurance provided under the following:

APPARATUS AND PORTABLE EQUIPMENT COVERAGE FORM

SCHEDULE		
<u>Item No.</u>	<u>Description</u>	<u>Annual Increase</u>
1	1989 Ford Mini Pumper 2FDKF38M3KCA48874	3%
3	1999 Freightliner Pumper LDH 1FV6HLCB7XH967190	3%
4	2012 Chevrolet Rescue 1GC1KVC6CF217008	3%
5	2013 Chevrolet First Responder 1GNSK2E00DR202269	3%

- A. For the "apparatus" shown in the Schedule above, the Agreed Value shown on the Schedule of Apparatus will automatically increase on a daily basis. The amount of the daily increase shall be based on the Annual Increase shown in the Schedule above. The percentage shown above will be applied pro rata to the Agreed Value shown on the Schedule of Apparatus that was effective on the policy inception date.
- B. In the event that the described "apparatus" was added to the policy after the inception date, the percentage shown above will be applied pro rata to the Agreed Value shown on the Schedule of Apparatus that was effective on the date the "apparatus" was added.
- C. However, in the event that the Agreed Value of the described "apparatus" was changed after the inception date, or changed after the date it was added, the percentage shown above will be applied pro rata to the Agreed Value shown on the Schedule of Apparatus that was effective on the date the Agreed Value was changed.
- D. To determine the increase in the Agreed Value for a desired date, multiply:
- (1) the Agreed Value from **A.**, **B.**, or **C.** above, whichever applies;
 - (2) by the Annual Increase shown above, expressed as a factor;
 - (3) and then by 1/365;
 - (4) and then by the number of days in the period that begins with the effective date of the Agreed Value from **A.**, **B.**, or **C.** above, whichever applies, and ends with the desired date.

Examples:

Agreed Value on the applicable Schedule of Apparatus	\$100,000	\$250,000
Annual Increase	8%	5%
Number of days from the effective date of the applicable Schedule of Apparatus	146	212
Amount of Increase	\$3,200 (\$100,000 x .08 ÷ 365 x 146)	\$7,260 (\$250,000 x .05 ÷ 365 x 212)

ARCH INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AUTOMATIC INCREASE FOR APPARATUS

Insured Stonebridge Contracting Inc

Policy No.:MEIM10653700 Effective Date: 4/1/2025

This endorsement modifies the insurance provided under the following:

APPARATUS AND PORTABLE EQUIPMENT COVERAGE FORM

SCHEDULE		
<u>Item No.</u>	<u>Description</u>	<u>Annual Increase</u>
6	2022 Sutphen Pumper Tanker 1S9A1BNEXN3003180	3%
7	2019 Mercedes Ambulance WD4FF0CD4KT008178	3%
8	2022 Ford Ambulance 1FDRF3HT2NEC75431	3%

- A. For the "apparatus" shown in the Schedule above, the Agreed Value shown on the Schedule of Apparatus will automatically increase on a daily basis. The amount of the daily increase shall be based on the Annual Increase shown in the Schedule above. The percentage shown above will be applied pro rata to the Agreed Value shown on the Schedule of Apparatus that was effective on the policy inception date.
- B. In the event that the described "apparatus" was added to the policy after the inception date, the percentage shown above will be applied pro rata to the Agreed Value shown on the Schedule of Apparatus that was effective on the date the "apparatus" was added.
- C. However, in the event that the Agreed Value of the described "apparatus" was changed after the inception date, or changed after the date it was added, the percentage shown above will be applied pro rata to the Agreed Value shown on the Schedule of Apparatus that was effective on the date the Agreed Value was changed.
- D. To determine the increase in the Agreed Value for a desired date, multiply:
- (1) the Agreed Value from **A.**, **B.**, or **C.** above, whichever applies;
 - (2) by the Annual Increase shown above, expressed as a factor;
 - (3) and then by 1/365;
 - (4) and then by the number of days in the period that begins with the effective date of the Agreed Value from **A.**, **B.**, or **C.** above, whichever applies, and ends with the desired date.

Examples:

Agreed Value on the applicable Schedule of Apparatus	\$100,000	\$250,000
Annual Increase	8%	5%
Number of days from the effective date of the applicable Schedule of Apparatus	146	212
Amount of Increase	\$3,200 ($\$100,000 \times .08 \div 365 \times 146$)	\$7,260 ($\$250,000 \times .05 \div 365 \times 212$)

ARCH INSURANCE COMPANY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WAIVED DEDUCTIBLE

This endorsement modifies the insurance provided under the following:

APPARATUS AND PORTABLE EQUIPMENT COVERAGE FORM

PORTABLE EQUIPMENT COVERAGE FORM

The following is added to **4. Deductible** under **C. What We Will Pay**:

The deductible will be waived if the "insured" has suffered no losses under this or any other coverage form or policy issued by us in the two consecutive policy periods immediately preceding this policy period.

The most we will waive for any one loss is \$1,000. If the deductible applying to the "loss" is greater than \$1,000, we will reduce such deductible by \$1,000 and apply the remaining deductible to the "loss".

We will only waive a deductible under this or any other coverage form or policy issued by us up to three times during this policy period.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

GUARANTEED REPLACEMENT COST – APPARATUS

This endorsement modifies the insurance provided under the following:

APPARATUS AND PORTABLE EQUIPMENT COVERAGE FORM

SCHEDULE	
<u>Item No.</u>	<u>Description</u>
6	2022 Sutphen Pumper Tanker 1S9A1BNEXN3003180
8	2022 Ford Ambulance 1FDRF3HT2NEC75431

With respect to the "Apparatus" shown in the schedule above, the following applies:

In the event that covered loss or damage exceeds the applicable Agreed Value described in paragraph **C. What We will Pay, 1. Apparatus**, we will increase the Agreed Value to whatever amount is needed to equal the lesser of:

1. The cost to replace the lost or damaged "Apparatus" with a new "Apparatus" manufactured to similar specifications as the lost or damaged "Apparatus" including any enhancements due to changes in technology, safety or equipment standards set by governmental authority or any nationally recognized standards setting organizations; or
2. The amount actually spent that is necessary to repair or replace the lost or damaged "Apparatus".

If you elect not to repair or replace the lost or damaged "Apparatus", the provisions of this endorsement do not apply.

If an "Apparatus" listed in the schedule above has reached an age in excess of five years, the provisions of this endorsement will no longer apply to such "Apparatus". In such event, the Agreed Value shown for such "Apparatus" in the Schedule of Apparatus will apply.